

Writ – C No. 29584 of 2012

Nawab Ali

vs.

State of U.P. and Others

Hon'ble Sheo Kumar Singh, J.**Hon'ble Ram Surat Ram (Maurya), J.**

1. Heard Sri R. L. Verma for the petitioner and Standing Counsel and Sri Shobhit Dubey for the respondents.
2. This writ petition has been filed for quashing the recovery citation dated 16.05.2012, which has been issued for realization of Rs. 7,06,426/-+interest+ recovery charges from the petitioner towards the electricity bills and for mandamus directing the respondents not to take coercive methods against the petitioner for realization of the aforesaid amount.
3. It is alleged that the petitioner took electricity connection of 5 K.W. On 06.04.2010, a trap was made, in which it was found that the petitioner was using 15 K.W. load. Accordingly a F.I.R. against the petitioner was lodged along with other persons. Subsequently on the basis of aforesaid report, an ex parte assessment has been done, imposing penal charges from the date of connection and recovery certificate of Rs. 7,06,426/-+interest+recovery charges has been issued.
4. The counsel for the petitioner submits that the petitioner is ready to pay the amount of bills. As recovery of heavy amount is being done. Due to poor financial condition, the petitioner is not able to pay the entire outstanding dues at a time. In case, he is allowed to pay the outstanding dues in easy installments, he will be able to deposit the entire outstanding dues. The counsel for the respondents submits that the department is interested in realization of the dues. In case the petitioner is ready to pay the dues in installments, then the department will have no objection.

5. Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 makes a provision that Executive Engineer or any officer higher in rank to him, may extend the facility of installment to those customers, who are in financially distress position. The counsel for the respondents submits that the department is interested in realization of the dues. In case, the petitioner is ready to pay, the department will have no objection in fixing the installments. Since the petitioner is ready to pay the outstanding dues, accordingly, in view of the aforesaid provision, it is provided that the petitioner may pay the entire amount of the bills in four equal installments. First installment of which shall be paid on or before 31.07.2012, the second installment be paid up to 31.10.2012, the third installment be paid up to 31.01.2013 and fourth and final installment will be paid up to 30.04.2013. In case of default in payment of the amount of any installment, the respondents will be free to recover the entire amount from the petitioner.

6. The recovery proceeding shall remain stayed till 31.07.2012. In case the petitioner deposits the first installment, then the stay order shall continue till the date of deposit of the second installment and on deposit of the second installment, it shall continue till the date of deposit of the third installment and on deposit of third installment it shall continue till the date of deposit of fourth installment.

7. With the aforesaid direction, the writ petition is **disposed of**.

Order dt: 07/06/2012

Jaideep/-

Court No. - 29

Case :- WRIT - C No. - 29584 of 2012

Petitioner :- Nawab Ali

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- R.L. Verma,B.L.Verma

Respondent Counsel :- C.S.C.,Shobhit Dube

Hon'ble Sheo Kumar Singh,J.

Hon'ble Ram Surat Ram (Maurya),J.

Earlier, writ petition was filed by Sri R.L. Verma, learned Advocate and with his consent, the writ petition was disposed of by giving liberty to the petitioner to deposit the amount recoverable from him in installments, as that itself is provided under the Electricity Supply Code.

In para 10 of the writ petition also, it has been clearly stated that the petitioner is ready to pay the amount in installments.

In para 4 of the judgment also, it is observed that the counsel for the petitioner submits that he is ready to pay the amount.

Sri Bashir Ahmad Khan, learned Advocate, who has been engaged subsequent to Sri R.L. Verma, has filed an application praying for review/recall of the order dated 7.6.2012.

In view of the aforesaid facts and also for the reasons that the review application has been filed by the second counsel who cannot be said to be in a position to know as to what transpired between the earlier counsel and the petitioner, we are of the view that review is neither maintainable nor otherwise has any merit.

The review application is **rejected**.

Order Date :- 31.8.2012

Jaideep/-